

25NWLC49889 25NWLC49889

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-06

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Case Number: 25NWLC49889 Hearing Date: August 6, 2026 Dept: Y

25NWLC49889: WELLS FARGO BANK, N.A. vs MANUEL NAVA

Tentative Ruling:

The Court has read and reviewed Plaintiff Wells Fargo Bank, N.A.'s ("Plaintiff") Motion for Summary Judgment ("Motion"), including the separate statement and supporting evidence. No opposition has been filed by Defendant Manuel Nava ("Defendant").

Plaintiff filed its Motion for Summary Judgment on May 19, 2026, setting it for hearing on August 6, 2026.

Pursuant to Code of Civil Procedure § 437c, a motion for summary judgment requires a minimum of 81 calendar days' notice before the hearing date, with additional time depending on the method of service, including 5 calendar days for service by mail. The interval from May 19, 2026 to August 6, 2026 is 79 calendar days, which does not satisfy the statutory notice requirement.

Based on the May 19, 2026 filing date, the earliest compliant hearing date for the motion would have been August 13, 2026. However, Code of Civil Procedure section 437c(a)(3) mandates that a motion for summary judgment be heard at least 30 days before trial. With a trial date of September 8, 2026, the last permissible hearing date for such a motion would be August 7, 2026.

Accordingly, Plaintiff's Motion for Summary Judgment is denied without prejudice.

The trial date of September 8, 2026 remains on calendar.